

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/11/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002593

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: BRIAN KESTLER and RESPONDENT: AUBREY CUBILO	
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NATURE OF PROCEEDINGS: REVIEW HEARING – CHILD CUSTODY/VISITATION;
CASE PROGRESS CONFERENCE

RULING

This matter is before the Court on Aubrey Cubilo's (Mother's) Request for Order filed February 6, 2026, relating to child custody and visitation relating to the parties shared daughter Amelia Kestler Cubilo (DOB 04/25/2025).

The parties were referred to Marin Family Court Services (FCS) for mediation, counseling and recommendations. Mother and Brian Kestler (Father) were both interviewed. FCS submitted its report dated May 20, 2026.

The FCS report is detailed and encompasses a review of correspondence from Dr. Jessica Mantia. As Mother has been psychiatrically hospitalized three times in the past year with the last hospitalization less than four months ago, the FCS recommendation is for supervised visits to continue to be in place for at least six more months. Mother's visits can be supervised by a nonprofessional supervisor such as her mother who will be residing with her. As Mother is engaged in extensive mental health care through the VA including medication management and various therapies, it would be appropriate to expand the length of the supervised visits to provide Mother opportunities to spend longer periods of time caring for Amelia. This would also provide for more bonding time between Amelia and Mother which is important at this stage of Amelia's development.

The Court has reviewed the submissions of the parties, including the statements of agreement/disagreement and the declaration of Dr. Daniel Pickar. The Court finds good cause and that it is in the best interest of the child to adopt the recommendations of FCS as modified as follows.

Parenting Plan for Brian Kestler/ Aubrey Cubilo

All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Father shall continue to maintain temporary sole legal and physical custody until further court order. Joint legal and physical custody shall be considered upon a showing that Mother has established a track record of mental health stability of at least one year from the date of her most recent psychiatric hospitalization on 1/30/26.
2. Mother shall continue to have supervised visits for another six months (until December 11, 2026). Mother's visits shall be supervised by an independent supervisor such as Amelia's maternal grandmother. The following step up plan shall be in place:
 - a. Commencing June 11 26, for a period of one month, Mother shall have supervised visits with Amelia each Saturday from 10 AM to 2 PM.
 - b. Commencing July 11, 2026, Mother's supervised visits with Amelia shall be each Saturday from 9 AM to 4 PM.
 - c. Commencing August 11, 2026, Mother's supervised visits with Amelia shall be each Saturday and Sunday from 9 AM to 6 PM.
 - d. Commencing October 11, 2026, provided that the maternal grandmother or another independent supervisor is available to be in the home overnight with Mother, an overnight shall be added to the schedule such that Mother shall have visits with Amelia each Saturday from 9 AM through Sunday 6 PM.
 - e. If there have been no issues with the supervised visits, Mother's visits shall transition to unsupervised parenting time commencing December 11, 2026. Mother shall have unsupervised parenting time each weekend except for the first weekend of the month from Friday evening through Sunday evening. Mother shall have the option to have a midweek visit from 3 PM to 7 PM in the week prior to Father's custodial weekend (first weekend of the month).
3. The schedule of parenting time between Mother and Amelia may be modified per mutual parental agreement only. If there is no agreement to modify the schedule, parents shall follow the court ordered schedule.
4. Mother shall continue all recommended mental health treatment through the VA including being medication compliant, participating in therapy, etc. The parenting plan specified in paragraph 2 above is contingent on Mother continuing to be compliant with all recommended mental health care treatment.
5. Neither parent shall be under the influence of alcohol to the point of intoxication when Amelia is in their custody.

6. Father shall participate in a mental health assessment through the VA to determine whether he could benefit from mental health services. The assessment shall include an interview with Mother so that the assessment is not based entirely on a self-report by Father. Father shall participate in therapy or other mental health services if recommended to do so following the assessment.
7. Father shall not engage in verbal abuse toward Mother.
8. Father shall take a domestic violence class of no less than six weeks to learn about the impact on children of verbal and emotional abuse including use of threats in intimate partner relationships. Father shall provide verification of completion of such class to the Court by August 11, 2026.
9. Both parents shall take a coparenting class.
10. A BFA is not recommended at this time.

Counsel for Father to prepare the findings and order after hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/11/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002667

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: HALEY BURNS

and

RESPONDENT: CHRISTOPHER
LAWRENCE LABRADO

NATURE OF PROCEEDINGS: REVIEW HEARING – CHILD CUSTODY/VISITATION

RULING

This matter is on calendar for a review hearing following a referral to Marin Family Court Services (FCS) for mediation, counseling and recommendations. Haley Burns (Mother) and Christopher Labrado (Father) were both interviewed. The parties share a son, Carter (DOB 4-23-2025).

Carter lives with Mother in Fairfax, although both are currently residing in Los Angeles with Mother's family. Father currently lives in Forestville.

There were no orders until a 3-year restraining order was put in place on May 4, 2026, under which both Mother and Carter are protected persons. The restraining order has an expiration date of May 4, 2026. Haley has sole legal and physical custody of Carter and no visits were ordered for Father, pending FCS and the scheduled hearing on June 11, 2026.

FCS submitted a detailed report dated June 4, 2026. Neither parent filed a statement of agreement/disagreement.

The interviews with FCS were fruitful. Both parents clearly love Carter very much. Carter is young and vulnerable, and he needs to be physically and emotionally safe in the care of both of his parents. FCS observed that more information is needed about Chris' substance use and mental health, as well as recommendations for the best way forward to address these issues.

The Court has reviewed the submissions of the parties, the FCS report and finds good cause and that it is in the best interest of the child to adopt the recommendations from FCS as modified as follows:

All current orders shall remain in effect with the following additions/modifications:
